

**SUBSTITUTE FOR
HOUSE BILL NO. 5038**

A bill to amend 1927 PA 175, entitled
"The code of criminal procedure,"
by amending section 16l of chapter XVII (MCL 777.16l), as amended by
2024 PA 262.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

CHAPTER XVII

Sec. 16l. (1) This chapter applies to the following felonies
enumerated in chapter 750 of the Michigan Compiled Laws:

M.C.L.	Category	Class	Description	Stat Max
750.213	Person	B	Threats to extort money	20



1	750.213a(3)(a)	Person	Variable	Coercing female to	Variable
2				have an abortion	
3				against her will	
4	750.213b(1)(a)	Person	E	Extortion involving	5
5				sexually explicit	
6				visual material -	
7				first offense	
8	750.213b(1)(b)	Person	D	Extortion involving	10
9				sexually explicit	
10				visual material -	
11				second offense	
12	750.213b(1)(c)	Person	B	Extortion involving	20
13				sexually explicit	
14				visual material -	
15				third or subsequent	
16				offense	
17	750.213b(2)	Person	B	Extortion involving	25
18				sexually explicit	
19				visual material -	
20				certain aggravating	
21				factors	
22	750.215(3)	Pub saf	F	Impersonating peace	4
23				officer	
24	750.217b	Pub saf	G	Impersonating public	2
25				utility employee	
26	750.217c(3)	Pub ord	H	Impersonating public	2
27				officer or employee -	
28				subsequent conviction	



1	750.217c(4)	Pub ord	G	Impersonating public	4
2				officer or employee –	
3				third or subsequent	
4				conviction	
5	750.217d	Pub saf	C	False representation	15
6				or practice as health	
7				professional	
8	750.217e	Pub ord	G	Impersonating a DHHS	2
9				employee	
10	750.217f	Pub saf	G	Impersonating a	2
11				firefighter or	
12				emergency medical	
13				service personnel	
14	750.218(4)	Property	E	False pretenses	5
15				involving \$1,000 or	
16				more but less than	
17				\$20,000 or \$200 or	
18				more but less than	
19				\$1,000 with prior	
20				convictions	
21	750.218(5)	Property	C	False pretenses	15
22				involving \$20,000 or	
23				more but less than	
24				\$50,000 or \$1,000 or	
25				more but less than	
26				\$20,000 with prior	
27				convictions	



1	750.218 (6)	Property	C	False pretenses	15
2				involving a value of	
3				\$50,000 or more but	
4				less than \$100,000 or	
5				\$20,000 or more but	
6				less than \$50,000	
7				with prior	
8				convictions	
9	750.218 (7)	Property	B	False pretenses	20
10				involving a value of	
11				\$100,000 or more or	
12				\$50,000 or more but	
13				less than \$100,000	
14				with prior	
15				convictions	
16	750.219a (2) (c)	Property	E	Telecommunications	5
17				fraud with 1 or more	
18				prior convictions or	
19				involving a value of	
20				\$1,000 to \$20,000	
21	750.219a (2) (d)	Property	D	Telecommunications	10
22				fraud with 2 or more	
23				prior convictions or	
24				involving a value of	
25				\$20,000 or more	
26	750.219d (4) (a)	Pub ord	C	Residential mortgage	15
27				fraud violation	
28				involving loan value	
29				of \$100,000 or less	



1	750.219d(4)(b)	Pub ord	B	Residential mortgage	20
2				fraud violation	
3				involving loan value	
4				of more than \$100,000	
5	750.219e	Property	F	Receiving,	4
6				possessing,	
7				preparing, or	
8				submitting an	
9				unauthorized credit	
10				application or	
11				receiving or	
12				possessing proceeds	
13	750.219f	Property	F	Receiving with intent	4
14				to forward,	
15				possessing with	
16				intent to forward, or	
17				forwarding an	
18				unauthorized credit	
19				application or	
20				proceeds	
21	750.219g(1)	Person	E	False representation	5
22				with regard to	
23				specific	
24				circumstances	
25				regarding an assisted	
26				reproduction	
27				procedure	

1	750.219g(2)	Person	C	Health professional	15
2				knowingly or	
3				recklessly using a	
4				human embryo or	
5				gamete other than the	
6				human embryo or	
7				gamete agreed to by	
8				the patient in	
9				assisted reproduction	
10				procedure	

11 (2) For a violation of section 213a(3)(a) of the Michigan
 12 penal code, 1931 PA 328, MCL 750.213a, determine the offense class,
 13 offense variable level, and prior record variable level based on
 14 the underlying offense.

15 Enacting section 1. This amendatory act takes effect 90 days
 16 after the date it is enacted into law.

17 Enacting section 2. This amendatory act does not take effect
 18 unless House Bill No. 5036 of the 103rd Legislature is enacted into
 19 law.

